

24STCV11859 24STCV11859

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-11

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Case Number: 24STCV11859 Hearing Date: August 11, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Consumer

Advocacy Group, Inc.

Plaintiff,

vs.

Transocean

Resources Management, Inc.

Defendant.

Case No.:

24STCV11859

Hearing Date:

August 11, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION

FOR LEAVE TO SUBMIT TARDY EXPERT WITNESS DESIGNATION

MOVING PARTY: Defendant Transocean Resources
Management, Inc.

RESPONDING PARTY: No opposition.

Motion for Leave
to Submit Tardy Expert Witness Designation

The court considered the moving
papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Defendant
Transocean Resources Management, Inc. ("Defendant") moves the court for an
order granting leave to submit a tardy expert witness designation.

First,
the court has taken into account the extent to which the opposing party (plaintiff
Consumer Advocacy Group, Inc. ("Plaintiff")) has relied on the absence of a
list of expert witnesses. (Code Civ. Proc., § 2034.720, subd. (a).) Here, Plaintiff
served its expert witness designation on March 18, 2026, and Defendant served its
tardy expert witness designation on April 15, 2026. The court subsequently continued trial from May
6, 2026 to August 19, 2026. (April 24, 2026 minute order.) The court then
continued trial based on the parties' stipulation to February 24, 2027.
(Stipulation and Order filed August 3, 2026.) Thus, although Plaintiff did not
have Defendant's expert witness designation for 27 days after it was due, Plaintiff
has been on notice of Defendant's tardy expert witness designation since April
15, 2026.

Second,

the court determines that Defendant (1) failed to submit the information as the result of mistake, inadvertence, surprise, or excusable neglect, (2) sought leave to submit the information promptly after learning of the mistake, inadvertence, surprise, or excusable neglect, and (3) promptly thereafter served a copy of the proposed expert witness information described in section 2024.260 on all other parties who have appeared in the action. (Code Civ. Proc., § 2034.720, subd. (c).)

The court
therefore grants Defendant's motion for leave to submit a tardy expert witness designation. (Code Civ. Proc., §§ 2034.710-2034.720.)

ORDER

The court GRANTS defendant
Transocean Resources Management, Inc. motion for leave to submit tardy expert witness designation.

The court orders that
defendant Transocean Resources Management, Inc. has leave to submit its expert witness designation that it served on April 15, 2026.

The court orders
defendant Transocean Resources Management, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 11, 2026

Robert B. Broadbelt III

Judge of the Superior Court